

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8b-110v-lsa
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-7041

Comment on FR Doc # 2025-02305

Submitter Information

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General Comment

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am a professor or art and a freelance artist, loving and working in California. I have worked for years to develop my business and the skills and livelihoods of both myself and many students to enable careers in creative arts, including fine art, education, and entertainment like film, video games, and comics.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses including my own and like those of all my students with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. The consumption of all this work to create AI systems without our consent or any compensation is a form of theft. These companies then flood the market with automated image generation, reassembling and regurgitating the work of living, working people directly competing with us and cutting us out of the marketplace.

This theft is not "fair use." It will stifle innovation as creative, innovative work by Americans is actively used to destroy our livelihoods in the name of corporate profits. If everything posted online can be used to generate cheap, derivative replacements for our creative work, there sharing work will be vastly disincentivized and such creative, innovative work will no longer be able to support American workers.

Further, a plan to rely on content generation software is plan to ruin the deep technical, procedural, and creative understandings that America needs in its work force. A worker who relies on AI is a worker who has a weaker understanding of math, science, engineering, history, medicine, etc.

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency. This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

The government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Any AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Material generated by this technology is effectively created by everyone whose work was used to build the software. It should never be eligible for copyright protections.

The AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

AI systems will clearly have useful and powerful applications. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.
Thank you for the opportunity to comment on these important issues.